

5. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING IN RE: JOINDER TO DEF VITNER HOMEOWNER'S ASSOCIATION, INC. AND ASAP
COLLECTION SERVICES MOTION FOR PROTECTIVE ORDER TO STAY ALL DISCOVERY UNTIL 30 DAYS
AFTER RESOLUTION OF DEMURRER
FILED BY: NEW PIPES INC
TENTATIVE RULING:

Defendants The Vintner Homeowners' Association and A.S.A.P. Collection Service LLC filed a motion for protective order to stay all discovery (the "MPO") on December 5, 2025. The motion was later joined by defendant New Pipes, Inc. (collectively, "Defendants") on December 15, 2025. The motion was set for hearing on June 29, 2026.

Background

The MPO sought to stay all discovery until thirty days after the resolution of the Defendants' previously filed demurrer. See MPO filed December 5, 2025, p. 2. The motion was joined by the additional defendant on December 15, 2025. See Joinder re Motion for Protective Order filed December 15, 2025 ("Joinder"). The proofs of service attached to the MPO and Joinder reflect service on plaintiff Praveen Gupta ("Plaintiff"). See Proof of Service dated December 5, 2025 as part of MPO filed December 5, 2025, pp. 3-4; Proof of Service dated December 15, 2025 as part of Joinder filed December 15, 2025. Plaintiff filed an opposition to the MPO on June 15, 2026 arguing the matter was moot given the filing of the second amended complaint and requesting sanctions. See Notice re Opposition to MPO filed June 15, 2026 ("Opposition to MPO"), pp. 1-2.

On June 22, 2026, Defendants filed a notice to withdraw the MPO and Joinder. See Notice re Withdrawal of MPO filed June 22, 2026 ("Notice re MPO Withdrawal"); Request for Judicial Notice re Reply and Notice of Withdrawal of Joinder filed June 22, 2026 ("Notice re Joinder Withdrawal").

Analysis

The moving party has withdrawn the motion stating that the MPO was premised on the impropriety of discovery given plaintiffs lack of standing which has now been cured. See Declaration of Michael A. Walker re Reply and Notice of Withdrawal filed June 22, 2026 ("Walker Decl."), ¶12-3. As the motion has been withdrawn, the hearing set for June 29, 2026 is hereby VACATED.

Although the moving party has withdrawn the motion, there is a pending request by Plaintiff for sanctions. In light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court finds and orders as follows:

1. The Motion for Protective Order has been withdrawn.

2. The hearing set for June 29, 2026 is hereby VACATED.
3. Any and all sanctions requests are DENIED.

6. 9:00 AM CASE NUMBER: C25-02471
CASE NAME: KRANTI KAPRE VS. CLEAR RECON CORP
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CLEAR RECON CORP
TENTATIVE RULING:

Defendant Clear Recon Corp ("Defendant") filed a Demurrer on February 17, 2026 (the "Demurrer") to the First Amended Complaint ("FAC") filed by plaintiff Kranti Kapre ("Plaintiff"). The Demurrer was set for hearing on June 29, 2026.

Background

Defendant's Demurrer contends that the first, second, third, and fourth causes of action all fail to state facts sufficient to constitute a cause of action. See Demurrer, pp. 1-2. The Declaration of Service attached to the Demurrer reflects service of the Demurrer on Plaintiff. See Declaration of Service filed February 17, 2026 as part of Demurrer, p. 1.

No opposition has been filed to the Demurrer.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685.

First Cause of Action (BREACH OF CONTRACT)

Defendant contends that the breach of contract claim does not state a cause of action because it does not allege the agreement and does not allege plaintiff's performance. See Memorandum of Points and Authorities filed February 17, 2026 ("MPA"), p. 4. The Court agrees.

The elements of a breach of contract claim are (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff. See *Tribeca Companies, LLC v. First American Title Ins. Co.* (2015) 239 Cal.App.4th 1088, 1109. Here, Plaintiff has alleged that "Defendant breached the mortgage servicing agreement by failing to accurately apply payments and calculate interest, causing financial harm." FAC filed December 15, 2025, ¶12. Although Plaintiff has referenced an agreement, to properly plead the existence of a contract, a plaintiff must